

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979 read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

Court of Appeal No:
CA/HCC/0255-257/2025
High Court of Jaffna
Case No: HC/2492/2018

1. Rajeswaran Naguleswaran
2. Arasan Ajanthan
3. Rajeswaran Rajeeb

ACCUSED-APPELLANTS

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **M.A.A.M. Behshad for the Appellants.**
Suharshi Herath, DSG for the Respondent.

ARGUED ON : **23/06/2026**

DECIDED ON : **18/09/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellants (hereinafter referred to as the Appellants) with five others were indicted jointly in the High Court of Jaffna as follows:

1. On 01.11.2016 at Thunnalai, in the jurisdiction of Jaffna High Court the Accused together with Arasan Rajeswaran, who is now deceased, were members of an unlawful assembly, the common object of which was to cause grievous hurt to Krishnapillai Kamaleswaran, thereby committing an offence punishable under Section 140 of the Penal Code.
2. In the course of the same transaction, the Accused together with Arasan Rajeswaran, who is now deceased, committed attempted murder on Krishnapillai Kamaleswaran thereby committing an offence punishable under Section 300 read with Section 146 of the Penal Code.

3. In the course of the same transaction, the Accused together with Arasan Rajeswaran, who is now deceased and with Gunadas Robin committed attempted murder and grievous hurt on Krishnapillai Kamaleswaran thereby committing an offence punishable under Section 300 read with Section 32 of the Penal Code.
4. In the course of the same transaction, the Accused together with Arasan Rajeswaran, who is now deceased, committed grievous hurt to Krishnapillai Ravigeethan an offence punishable under Section 317 read with Section 146 of the Penal Code.
5. In the course of the same transaction, the Accused together with Arasan Rajeswaran, who is now deceased, committed grievous hurt to Krishnapillai Ravigeethan an offence punishable under Section 317 read with Section 32 of the Penal Code.

The trial commenced before the High Court Judge of Jaffna as the Appellants had opted for a non-jury trial. The prosecution had called 08 witnesses and marked productions P1-P4. After the conclusion of the prosecution case, the Learned High Court Judge had called for the defence and the Appellants and the other accused had given evidence under oath and closed their case. After considering the evidence presented by both parties, the Learned High Court Judge had convicted the Appellants and the others for 1st and 3rd counts and sentenced as follows:

- For the 1st Count each of the Appellants were sentenced to 03 months rigorous imprisonment with a fine of Rs.5000/-. In default 45 days simple imprisonment.
- For the 3rd Count the 1st Appellant was sentenced to 05 years rigorous imprisonment with a fine of Rs.20,000/-. In default 12 months simple imprisonment. In addition, the Learned High Court Judge had directed

the 1st Appellant to pay a compensation of Rs.200,000/- to PW1 with a default sentence of 2 years simple imprisonment.

- For the 3rd Count the 2nd and 3rd Appellants were sentenced to 02 years rigorous imprisonment with a fine of Rs.20,000/-. In default 12 months simple imprisonment. In addition, the Learned High Court Judge had directed the 2nd and 3rd Appellants to pay a compensation of Rs.150,000/- each to PW1 with a default sentence of 18 months simple imprisonment.

Being aggrieved by the aforesaid conviction and the sentence, the Appellants preferred this appeal to this court.

Although two other Accused were sentenced, they did not appeal against their sentence.

The Appellants were present in court as they are on bail pending appeal.

Background of the Case.

According to PW1, Kamaleswaran, the injured person, on the day of the incident, at about 10.00 am, upon hearing the voice of his brother Raveendran, when he had gone near the gate of his house, he had seen the Appellants and the other Accused heckling at his brother. When he had inquired from them as to why they were heckling, the Appellants and others had attacked him with knives. Due to the injuries he sustained, he had received in house treatment at the Jaffna Teaching Hospital for about 10 days. On a previous occasion, PW1 was attacked with knives by the relatives of the 2nd Appellant and for which he was hospitalised for about two days. The cause of this continuous attack was due to a money transaction involving the 4th Accused.

In the cross examination, PW1 admitted that a case was pending before the Magistrate Court of Point Pedro against him for causing injuries to the 2nd Appellant.

According to PW5, the JMO who examined PW1, a sharp cut injury on left elbow which exposed the joint cavity and a laceration on the right palm were noted. The JMO has also stated that the severity of the injuries is consistent with that of what would be the result of injuries caused by a sharp cutting instrument. The injuries are categorised as grievous injuries.

The Appellants giving evidence from the witness box denied that they had assaulted and cut PW1.

The Learned Counsel for the Appellants had raised three grounds of appeal which are set out below:

1. Has the prosecution proved the case against the Appellants beyond reasonable doubts.
2. In view of the facts and the circumstances of the case, the sentence imposed is unduly harsh and unjust.

As the grounds of appeal raised by the Appellants are interconnected, all grounds will be considered together hereinafter.

At the commencement of the argument, the learned Counsel submitted to court that the Appellants are only contesting the sentence. Considering the circumstances under which the incident happened, the learned Counsel submits that this is an appropriate case to impose a non-custodial sentence with the enhancement of compensation.

In this case, the Appellants and the other Accused were indicted for unlawful assembly and committing attempted murder and grievous hurt under

Section 317 of the Penal Code. Alternatively, the Appellants and the other Accused were indicted under Section 300 coupled with Section 32 of the Penal Code. After the trial, the Learned High Court Judge convicted Appellants and the other Accused for the first count under 140 of the Penal Code and for the third count under Section 300 read with 32 of the Penal Code.

In this case, since the Learned High Court Judge convicted the Appellants and others under Section 140 of Penal Code (as per the indictment) he should have convicted the Appellants and others for the second count which is under Section 300 read with Section 146 of the Penal Code. Since this defect was not contested, I am not considering that defect in this judgment.

For the first count, the Learned High Court Judge had sentenced the Appellants and the others for three months rigorous imprisonment with a fine. For the third count they were sentenced differently.

The first Appellant was sentenced to five years rigorous imprisonment with a fine of Rs.20,000/- and compensation of Rs.200,000/-.

The Second and third Appellants were sentenced to two years rigorous imprisonment with a fine of Rs.20,000/- and compensation of 150,000/-.

The 4th and 5th Accused named in the indictment were sentenced to 21 months rigorous imprisonment with a fine Rs.20,000/- and compensation of Rs.100,000/-. Further, the Learned High Court Judge had suspended their 21 months sentence for five years from the date of conviction.

Since, all the Appellants and the others had been found guilty after a full trial, the learned Counsel for the Appellant submits to this court that all should have been sentenced equally in this case. Hence, he invites this court

to consider this sentencing disparity and award relief to his clients subject to the enhancement of compensation.

The learned Deputy Solicitor General in keeping with the highest traditions of the Attorney General's Department has agreed that this is an appropriate case to re-consider the sentence imposed by the Learned High Court Judge.

Considering the submissions made by both the Counsel, I set aside the sentence imposed on the Appellants and substitute it with the sentence as follows:

For the third count, the 1st Appellant was sentenced to two years rigorous imprisonment to run concurrent to the sentence imposed on count number one. Further, I order the two years rigorous imprisonment to be suspended for five years. The 1st Appellant is fined for Rs.20,000/- with a default sentence of 06 months simple imprisonment. Further, I impose a compensation of Rs.400,000/- with a default sentence of 01-year simple imprisonment.

For the third count, the 2nd Appellant was sentenced to two years rigorous imprisonment to run concurrent to the sentence imposed on count number one. Further, I order the two years rigorous imprisonment to be suspended for five years. The 2nd Appellant is fined for Rs.20,000/- with a default sentence of 06 months simple imprisonment. Further, I impose a compensation of Rs.300,000/- with a default sentence of 01-year simple imprisonment.

For the third count, the 3rd Appellant was sentenced to two years rigorous imprisonment to run concurrent to the sentence imposed on count number one. Further, I order the two years rigorous imprisonment to be suspended for five years. The 3rd Appellant is fined for Rs.20,000/- with a default sentence of 06 months simple imprisonment. Further, I impose a

compensation of Rs.300,000/- with a default sentence of 01-year simple imprisonment.

Subject to the above variation in sentence, the Appeal is dismissed.

The Learned High Court Judge of Jaffna is hereby directed to issue notice on the Appellants to appear before the High Court, and to comply with this judgement.

The Registrar of this Court is directed to send this judgement to the High Court of Jaffna along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL